

HOUSE No. 1971

The Commonwealth of Massachusetts

PRESENTED BY:

Jeffrey N. Roy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to restore the statute of limitations for wrongful death claims.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jeffrey N. Roy</i>	<i>10th Norfolk</i>	<i>1/16/2025</i>

HOUSE No. 1971

By Representative Roy of Franklin, a petition (accompanied by bill, House, No. 1971) of Jeffrey N. Roy relative to the statute of limitations for wrongful death claims. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to restore the statute of limitations for wrongful death claims.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 2 of chapter 229 of the General Laws as so appearing in the 2022 Official Edition
2 is hereby amended after the third sentence by inserting the following sentence:

3 SECTION 1. An action to recover damages under this section is not derivative of any
4 personal injury claim brought by the decedent, and may be commenced irrespective of whether
5 the decedent timely commenced a claim for the injury causing death.

6 SECTION 2. This amendment shall be effective retroactively to July 6, 2023.